

Superior Court of California, County of Tuolumne

Consolidated Calendar

Hon: Hallie Gorman Campbell

Department 2

June 3, 2026

8:30 am

DA Case #

Date Filed

9 CV65594 Darren Dolbeare vs. Charles McMahon

09/25/2023

Darren Dolbeare

Attorney: Lilian Sedaghat

Charles McMahon

Motion Hearing - Attorney Withdrawal

Reserved

Motion reserved by paralegal for Sedaghat Law Group (424) 777-0078.

Emanix

Case Management Conference

Final Zoom Approved.

09/25/2023 Complaint

File Tracking

07/11/2025 High Density

This is a personal injury action stemming from an automobile accident that occurred on Tuolumne Road on 09/24/2021. A lawsuit was filed, but little has occurred since then. The following represents the salient timeline of events:

- 09/25/2023: Lawsuit ostensibly filed (pleading not signed)
- 12/29/2023: Plaintiff/counsel fail to appear at CMC
- 02/06/2024: Counsel files declaration falling on sword and explaining that error was result of abrupt departure from firm of handling attorney; advises that a skip trace and service effort is out;
- 08/05/2024: Counsel files a motion to withdraw. Motion was denied for both procedural and substantive defects;
- 11/08/2024: Court sets OSC to strike the complaint, sura sponte, for failing to affix a required signature;
- 12/13/2024: Counsel fails to appear for OSC to strike complaint; second hearing is scheduled;
- 01/29/2025: Counsel files declaration attributing scheduling error to departure of attorney one year prior (despite recent appearances by other attorney in firm);
- 05/01/2025: Plaintiff/counsel file application for service via publication; application is denied for want of due diligence and exhaustion of other options;
- 07/28/2025: Counsel files second motion to withdraw, containing many of the same procedural and substantive defects. Hearing continued;
- 12/23/2025: Plaintiff/counsel files second application for service via publication; application is denied as Union Democrat not a paper likely to provide actual notice to defendant in South Dakota;
- 01/06/2026: Counsel files proof of service reflecting personal service upon defendant at a location in South Dakota.
- 05/01/2026: Counsel files third motion to withdraw. This motion does not contain any valid explanation for the need, nor does it establish an address confirmed within the past 30 days. Moreover, the POS shows an address in CA, not S.D. The motion must be denied, again.

Pursuant to CCP §583.250, if service of the summons is not made within three years from the filing of the complaint, "the action shall be dismissed by the court." This action is slated for dismissal in just under four months. This Court will not entertain a fourth motion to withdraw, particularly in light of the upcoming prejudice to the client. See CPRC 1.16(d), 3.2; in accord, *Mossanen v. Monfared* (2000) 77 Cal.App.4th 1402, 1409.